Petroleum Administration for War and the Defense Supplies Corporation.

RECONSTRUCTION FINANCE CORPORATION,
By GEORGE STONER,
Associate Director,
Office of Defense Supplies.

[F. R. Doc. 45-12937; Filed, July 16, 1945; 11:47 a. m.]

[Rev. Reg. 1, Amdt. 7]

PART 7001—PETROLEUM COMPENSATORY ADJUSTMENTS

Petroleum Compensatory Adjustments Revised Regulation No. 1 of Defense Supplies Corporation, as amended, together with Schedules A, C and E thereof, was further amended by Defense Supplies Corporation by the issuance on May 31, 1945, of the following:

Amendment No. 7 to Petroleum Compensatory Adjustments Revised Regulation No. 1.

Amendment No. 3 to Revised Schedule A.[1]

Amendment No. 2 to Schedule C, as revised effective September 1, 1944.[1]

Amendment No. 5 to Schedule E.[1]

1. Section 7001.1 *Definitions,* as amended, is further amended by changing paragraphs (a) and (c) to read as follows:

§ 7001.1 *Definitions.* * * *

(a) "District One" means the States of Connecticut, Delaware, Florida (except west of the Apalachicola River), Georgia, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, North Carolina, Pennsylvania, Rhode Island, South Carolina, Vermont, Virginia, and West Virginia, and the District of Columbia.

* * * * *

(c) "District Three" means the States of Alabama, Arkansas, Louisiana, Mississippi, New Mexico, Texas, and that portion of the State of Florida west of the Apalachicola River.

* * * * *

2. Section 7001.5 *Extra transportation and compensable product costs,* as amended, is further amended by adding the following new subparagraph (3) (iii) to paragraph (a) and by changing subparagraph (1) of paragraph (c) thereof to read as set forth below:

§ 7001.5 *Extra transportation and compensable product costs*—(a) *Amount of compensatory adjustment.* * * *

(3) * * *.

(iii) When products are delivered or received by an applicant under an exchange, barter or borrow-and-loan arrangement with a non-applicant, such deliveries or receipts shall, for the purposes of computing revenue, be considered as sales or purchases respectively; *Provided, however,* That receipts from or deliveries to a non-applicant on and after June 1, 1945, which, on a first-in-first-out basis, are determined to be in repayment of an open balance on June 1, 1945, of an exchange, barter or borrow-and-loan arrangement with a non-applicant, shall be exempt from this subdivision.

* * * * *

(c) *Method of determining extra transportation costs.* (1) Transportation costs, under both the normal and substitute methods of transportation, shall be computed on the basis of the crude, compensable products or miscellaneous products actually moved by the substitute method of transportation, and shall be computed to the first actual delivery point in District One which is common to both methods: *Provided,* That in the case of crude, compensable products or naphtha the claim, other than for an intra-district movement, shall terminate in any event upon delivery to the first point located in District One outside of the area defined in Schedule D hereof at which such products or crude are unloaded, except when unloaded into "pipe line break-out storage facility" or into a terminal at Carabelle, Florida, for through movement to a Supply Terminal, in which event the claim shall terminate upon delivery to the first such supply terminal into which such products or crude are thereafter unloaded. Compensation, if any, for a movement beyond the foregoing points shall be claimed only as a compensable intra-district movement, and movements of crude, compensable products or miscellaneous products refined, purchased or otherwise acquired in District One shall not be compensable except as provided in § 7001.1 (p) and paragraph (a) (1) (v), (vi), (vii), (viii), and (ix) of this section.

* * * * *

The foregoing amendment shall become effective as of June 1, 1945.

RECONSTRUCTION FINANCE CORPORATION,
GEORGE STONER,
Associate Director,
Office of Defense Supplies.

[F. R. Doc. 45-12938; Filed, July 16, 1945; 11:47 a. m.]

Chapter XXIII—Surplus Property Board

[SPB Reg. 2, Amdt. 1]

PART 8302—PRIORITIES OF GOVERNMENT AGENCIES AND STATE OR LOCAL GOVERNMENTS

Surplus Property Board Regulation 2, April 24, 1945, entitled "Priorities of Government Agencies and State or Local Governments" (10 F.R. 5104) is hereby amended by adding at the end of § 8302.5 (b) the following new subparagraph (5):

(5) When the cost (estimated if not known) of all substantially similar items of such property in the possession of the disposal agency at any one location at any one time does not exceed $300.

This amendment shall become effective immediately.

SURPLUS PROPERTY BOARD,
By A. E. HOWSE,
Administrator.

JULY 13, 1945.

[F. R. Doc. 45-12994; Filed, July 17, 1945; 11:33 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Appendix—Public Land Orders

[Public Land Order 287]

CALIFORNIA

REVOKING IN PART EXECUTIVE ORDER 8865 AND OPENING LANDS UNDER APPLICABLE LAWS

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and to the act of April 23, 1932, 47 Stat. 136, it is ordered as follows:

Executive Order No. 8865 of August 21, 1941, withdrawing public lands for the use of the War Department for combat firing ranges and maneuver purposes, is hereby revoked so far as it affects the following-described lands:

SAN BERNARDINO MERIDIAN

T. 14 S., R. 12 E.,
Secs. 20, 21, 28, and 29.
The areas described aggregate 2,560 acres.

The jurisdiction over and use of such lands granted to the War Department by Executive Order No. 8865 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior, under the order of October 19, 1920, of the Secretary of the Interior, withdrawing the lands for reclamation purposes under the provisions of the act of June 17, 1902, 32 Stat. 388.

This order shall not otherwise become effective to change the status of the lands until 10:00 a. m. on the 63d day from the date on which it is signed, at which time the lands, subject to valid existing rights and the provisions of the then existing withdrawals, shall become subject to the laws applicable to lands affected by such withdrawals, and to location, entry, and patent, under the general mining laws subject to the terms of the following stipulations and to the regulations contained in § 185.36 of Title 43 of the Code of Federal Regulations (Circular No. 1275, June 22, 1932, 53 I.D. 706):

In carrying on the mining and/or milling operations contemplated hereunder locators will, by means of substantial dikes or other adequate structures, confine all tailings, debris and harmful chemicals in such a manner that the same shall not be carried beyond the herein described lands by storm waters or otherwise.

There is reserved to the United States, its successors and assigns the prior right to use any of the lands herein described to construct, operate, and maintain dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, and appurtenant irrigation structures, without any payment made by the United States or its successors for such right, with the agreement on the part of the Locator that if the construction of any or all of such dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, or appurtenant irrigation structures across, over, or upon said lands should be made more expensive by reason of the existence of improvements or workings of the Locator thereon, such additional expense is to be estimated by the Secretary of the Interior, whose estimate is to be final and binding upon the parties hereto, and

[1] Filed with the Division of the Federal Register.

that within thirty days after demand is made upon the Locator for payment of any such sums, the Locator will make payment thereof to the United States or its successors constructing such dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, or appurtenant irrigation structures across, over, or upon said lands. The Locator further agrees that the United States, its officers, agents, and employees and its successors and assigns shall not be held liable for any damage to the improvements or workings of the Locator resulting from the construction, operation, and maintenance of any of the works hereinabove enumerated. Nothing contained in this paragraph shall be construed as in any manner limiting other reservations in favor of the Locator. When executed by the Locator, these stipulations shall be binding upon the Locator and his heirs, successors, and assigns.

The foregoing stipulations shall be executed in favor of the United States by intending locators, recorded in the county records, and filed in the District Land Office at Los Angeles, California, before locations are made, and they shall be incorporated in any patents issued on such locations.

Any applications shall be filed in the District Land Office at Los Angeles, California, and shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), to the extent that such regulations are applicable.

ABE FORTAS,
Acting Secretary of the Interior.

JULY 8, 1945.

[F. R. Doc. 45-12961; Filed, July 17, 1945; 9:44 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Order 107-A]

PART 3—RULES GOVERNING STANDARD AND HIGH-FREQUENCY BROADCAST STATIONS

CHANGES IN METHOD OR METHODS OF DETERMINING CERTAIN OPERATING CONSTANTS OF STANDARD BROADCAST STATIONS

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 10th day of July 1945;

Whereas the Commission on November 6, 1942, at the request of the Board of War Communications adopted Order No. 107 suspending the provisions of § 3.52 of the Commission's rules and regulations and requiring the readjustment of standard broadcast transmitters by decreasing the radiated power by one decibel in order to prolong the life of the transmitting equipment, and

It now appearing that the War Production Board has advised that repair parts for transmitters are now generally available and that no difficulty will be encountered in restoring transmitters to full power operation, and

It further appearing that the operation of standard broadcast stations with full power, is in the public interest, and that an opportunity should be afforded for making the necessary readjustments and tests to return to normal operating practices.

Now, therefore, it is hereby ordered: That on and after September 1, 1945, at the option of the licensee, transmitting operations may be conducted with full operating power during daytime hours only, and that on and after October 1, 1945 Order No. 107 shall be revoked, and all licensees shall be required to operate in accordance with the provisions of § 3.52 of the rules and regulations.

[SEAL] FEDERAL COMMUNICATIONS COMMISSION,
T. J. SLOWIE,
Secretary.

[F. R. Doc. 45-12968; Filed, July 17, 1945; 10:14 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter II—Office of Defense Transportation

[Administrative Order ODT 7A]

PART 503—ADMINISTRATION

DELEGATION OF AUTHORITY, RAILWAY TRANSPORT DEPARTMENT

Pursuant to Executive Order 8989, as amended, it is hereby ordered, that:

§ 503.210 *Appointment of special representative.* Mr. J. J. Kelley, Jr., Manager, Military Transportation Section, War Department, Pentagon Building, Washington, D. C., is hereby appointed special representative of the Railway Transport Department, Office of Defense Transportation, with authority, subject to my general supervision and right of revocation in any given case:

(a) To direct the movement over the lines of any carrier by railroad, of any special freight train the operation of which has been authorized by a special permit issued by said J. J. Kelley, Jr., under the provisions of Revised Service Order No. 151 issued by the Interstate Commerce Commission on July 10, 1945, on the application of a responsible official or officer of the Department of War, the Department of the Navy, the Marine Corps, or the Coast Guard, of the United States;

(b) To direct the movement over the lines of any carrier by railroad, of any troop train or passenger cars containing troops or military personnel, on the application of a responsible official or officer of the Department of War, the Department of the Navy, the Marine Corps, or the Coast Guard, of the United States; and

(c) To furnish information concerning the operation of any such special freight trains, troop trains, and railway cars to such officials or employees of the Office of Defense Transportation at such times and in such form and manner as I may hereafter direct.

This Administrative Order ODT 7A shall become effective on July 17, 1945.

Administrative Order ODT 7 (8 F.R. 12447), is hereby revoked as of the effective date of this Administrative Order ODT 7A.

(E.O. 8989, 6 F.R. 6725 and 8 F.R. 14183)

Issued at Washington, D. C., this 17th day of July, 1945.

J. M. JOHNSON,
Director,
Office of Defense Transportation.

[F. R. Doc. 45-12940; Filed, July 16, 1945; 2:26 p. m.]

[Administrative Order ODT 6B, Amdt. 8]

PART 503—ADMINISTRATION

ESTABLISHMENT OF REGIONS, DISTRICTS, AND FIELD OFFICES OF HIGHWAY TRANSPORT DEPARTMENT

Pursuant to Executive Orders 8989, as amended, and 9156,

It is hereby ordered, That Appendix 2 of Administrative Order ODT 6B, as amended (9 F.R. 12289, 13069; 10 F.R. 525, 1940, 3139, 5119, 7197, 8561), be, and it hereby is, further amended in the following particulars:

(1) Under the subtitle "Region 6" thereof the matter opposite "*Wisconsin*" is amended to read as follows:

Wisconsin. District offices: Green Bay, La Crosse, and Milwaukee. Field office: Madison.

(2) Under the subtitle "Region 6" thereof the matter opposite "*Illinois*" is amended to read as follows:

Illinois. District offices: Chicago, Peoria, and Springfield. Field office: Cairo.

Paragraph (1) of this Amendment 8 to Administrative Order ODT 6B shall be retroactive to be effective as of July 1, 1945. Paragraph (2) of this Amendment 8 to Administrative Order ODT 6B shall become effective July 15, 1945.

(E.O. 8989, as amended, 6 F.R. 6725, 8 F.R. 14183; E.O. 9156, 7 F.R. 3349)

Issued at Washington, D. C., this 14th day of July 1945.

J. M. JOHNSON,
Director,
Office of Defense Transportation.

[F. R. Doc. 45-12959; Filed, July 16, 1945; 4:30 p. m.]

Notices

DEPARTMENT OF THE INTERIOR.

Bureau of Mines.

HOWARD COAL CO.

ORDER DETERMINING VIOLATIONS AND IMPOSING CONDITIONS FOR SUSPENSION OF REVOCATION

In the matter of licensee J. W. Howard, Howard Coal Company, Box 610, Elkins, W. Va. Proceedings for revocation of license.

Based upon the records in this matter, including your answer, I make the following findings of fact:

1. On June 8, 1945, a specification of charges against you setting forth violations of which you were accused under